



Proceedings Against Estates Act 1970

1970 CHAPTER 17

An Act to repeal section 1(3) of the Law Reform (Miscellaneous Provisions) Act 1934 and to make provision for facilitating proceedings against the estates of deceased persons. [15th May 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Limitation
of actions in
tort against
estate of
deceased.
1934 c. 41.
1954 c. 36.

1. Subsection (3) of section 1 of the Law Reform (Miscellaneous Provisions) Act 1934 (which imposes restrictions on the proceedings maintainable in respect of a cause of action in tort which by virtue of that section has survived against the estate of a deceased person) and sections 4 and 7(2) of the Law Reform (Limitation of Actions, &c.) Act 1954 (which relaxed those restrictions) are hereby repealed.

Proceedings
against
estate of
deceased.
1925 c. 49.
1959 c. 22.

2. Rules of court made under section 99 of the Supreme Court of Judicature (Consolidation) Act 1925 or section 102 of the County Courts Act 1959 may make provision—

- (a) for enabling proceedings to be commenced against the estate of a deceased person (whether by the appointment of a person to represent the estate or otherwise) where no grant of probate or administration has been made;
- (b) for enabling proceedings purporting to be commenced against a person who has died to be treated as having been commenced against his estate; and
- (c) for enabling any proceedings commenced or treated as commenced against the estate of a deceased person to be maintained (whether by substitution of parties, amendment or otherwise) against a person appointed to

represent the estate or, if a grant of probate or administration is made, against the personal representatives.

3.—(1) This Act may be cited as the Proceedings Against Estates Act 1970. Citation, commencement, transitional provision and extent.

(2) This Act shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint.

(3) Section 1 of this Act shall apply in relation to causes of action arising before as well as in relation to causes of action arising after the commencement of this Act, but not so as to enable any proceedings to be taken which had ceased to be maintainable before the commencement of this Act.

(4) This Act does not extend to Scotland or to Northern Ireland.